

Mohammad Sajid v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 19.10.2023 · 2023:AHC:202761-DB · WRIT - C No. 35384 of 2023 · **Writ disposed; fresh Clause 6.15 application to be decided in a month.**

HEADNOTE

Demand notice dated 29.6.2023 was objected to on 7.7.2023. On the Electricity Department's statement, the Division Bench disposed of the writ without deciding the demand: a fresh application under Clause 6.15 of the Electricity Supply Code, 2005, filed within one month with a certified copy of the order, shall be considered and decided within a month, and recovery shall not be pressed for two months.

FACTUAL SUMMARY

The petitioner, Mohammad Sajid, was served a bill and demand notice dated 29 June 2023 and objected to it on 7 July 2023. He approached the Allahabad High Court in Writ-C No. 35384 of 2023 against the State of Uttar Pradesh and two others. Before the Division Bench, counsel for the Electricity Department stated that a fresh application by the petitioner under Clause 6.15 of the Electricity Supply Code, 2005 would be considered by the department in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15

Fresh Clause 6.15 application to be considered

HOLDING

If the petitioner moves a fresh application under Clause 6.15 of the Electricity Supply Code, 2005 within one month, along with a certified copy of this order, the Electricity Department shall consider and decide it within one month of filing. For two months, no recovery shall be pressed. The writ petition is disposed of on that basis. ¶ 2-5

PRINCIPLE TAGS

clause-6.15-two-year-limitation-relegated-to-authority The Bench did not decide the 29.6.2023 demand. It disposed of the writ on the department's statement that a fresh Clause 6.15 application would be considered in accordance with law, directed decision within a month of an application filed within one month, and kept recovery in abeyance for two months. ¶ 2-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 29.6.2023 IS RECOVERABLE UNDER CLAUSE 6.15

Left to the Electricity Department on a fresh application, to be considered and decided in accordance with law. ¶ 2-3